One month after the Rome Statute entered into force on July 1, 2002, the American Servicemembers' Protection Act became law.[1] Section 2008 is popularly nicknamed the "Hague Invasion Clause" because it authorizes the President to use "all means necessary and appropriate" to free "covered United States persons" and "covered allied persons" held by the International Criminal Court (ICC), a court based in The Hague, in the Netherlands; that language is widely understood to include military force.[2] Most arguments focus on whether it is good policy: does it protect American troops, does it undermine the integrity of NATO, and so on. Those are fair questions, but they do not resolve a separate legal problem in the statute. Section 2008 grants the President extraordinary authority while containing few of the internal safeguards Congress has put in place elsewhere to supervise national security powers. It also fails to clarify how that authority interacts with the War Powers Resolution. Those omissions, rather than the underlying policy dispute over the ICC, provide the strongest reason Congress should amend Section 2008.

Section 2008 falls within national security law, the body of law that regulates how the government makes decisions about war, national emergencies, and military force. For fifty years, Congress has employed statutory limits to constrain extraordinary presidential powers in national security matters. The War Powers Resolution is the clearest example. It requires the President to report to Congress within forty-eight hours after introducing U.S. forces "into hostilities or into

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[1] *Rome Statute of the International Criminal Court* art. 126, July 17, 1998, 2187 U.N.T.S. 3, https://treaties.un.org/doc/Treaties/2011/08/20110812%2004-19%20PM/English.pdf; American Servicemembers' Protection Act of 2002, Pub. L. No. 107-206, tit. II, 116 Stat. 820, 899 (2002), https://www.govinfo.gov/content/pkg/PLAW-107publ206/pdf/PLAW-107publ206.pdf.

[2] 22 U.S.C. § 7427(a)–(b); Human Rights Watch, *U.S.: "Hague Invasion Act" Becomes Law* (Aug. 3, 2002), https://www.hrw.org/news/2002/08/03/us-hague-invasion-act-becomes-law.

situations where imminent involvement in hostilities is clearly indicated by the circumstances." Then a clock starts: the troops must come home within sixty days, with a thirty-day extension possible, unless Congress votes to authorize the continuation of the deployment.[3] The National Emergencies Act uses different safeguards. When the President declares a national emergency, that emergency automatically expires after one year unless the President formally renews it, and Congress can terminate it early with the enactment of a joint resolution.[4] The 2001 Authorization for Use of Military Force illustrates another form of limitation: Congress defined the class of permissible targets and expressly designated the statute as authorization under the War Powers Resolution.[5]

Section 2008 deviates from this pattern. Its authorization is entirely prospective: Congress authorized the President to respond to the future detention of a covered American or allied person by the ICC without knowing who would be detained, when the detention would occur, or where such an operation might take place. More importantly, Section 2008 omits the language the War Powers Resolution expressly requires when Congress intends another statute to authorize the introduction of American forces into hostilities.[6] That omission is significant because the War Powers Resolution establishes a rule for interpreting later

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[3] 50 U.S.C. §§ 1543(a)(1), 1544(b), https://uscode.house.gov/view.xhtml?edition=prelim&f=treesort&num=0&req=(title:50+section:1544+edition:prelim)+OR+(granuleid:USC-prelim-title50-section1544).
[4] 50 U.S.C. § 1622(a), (b), (d), https://uscode.house.gov/view.xhtml?edition=prelim&num=0&req=granuleid:USC-prelim-title50-section1622.
[5] Authorization for Use of Military Force, Pub. L. No. 107-40, § 2(a)–(b), 115 Stat. 224, 224 (2001), https://www.govinfo.gov/app/details/PLAW-107publ40.
[6] *Compare* 50 U.S.C. § 1547(a)(1), https://uscode.house.gov/view.xhtml?req=(title:50+section:1547+edition:prelim), *and* Authorization for Use of Military Force, Pub. L. No. 107-40, § 2(b)(1), 115 Stat. 224, 224 (2001), https://www.govinfo.gov/app/details/PLAW-107publ40, *with* 22 U.S.C. § 7427(a), https://uscode.house.gov/view.xhtml?edition=prelim&num=0&req=granuleid:USC-prelim-title22-section7427.

statutes: authority to introduce American forces into hostilities should not be inferred unless Congress expressly says that the statute is intended to provide such authorization. The contrast with the 2001 AUMF is stark. Congress did exactly what the War Powers Resolution contemplated there, explicitly stating that the AUMF constituted "specific statutory authorization" under the Resolution. However, Section 2008 contains no comparable statement. If "all means necessary and appropriate" is understood to include and authorize military force, that means Congress enacted language that appears to contemplate hostilities without using the express-reference requirement established by the War Powers Resolution. That omission creates legal uncertainty. Under the text of the War Powers Resolution, Section 2008 does not appear to qualify as the "specific statutory authorization" contemplated by the Resolution. An operation conducted under Section 2008 could remain subject to the Resolution's sixty-day termination rule unless Congress separately authorized continued use of force. Section 2008 contains no reporting requirement tied to the exercise of its authority and no requirement that Congress periodically reauthorize it. Nor does it have an ordinary expiration date. The statute does provide that Section 2008's authority terminates if the United States becomes a party to the ICC through a treaty,[7] but that safeguard is politically remote. The United States has never ratified the Rome Statute, and becoming a party would require the approval of two-thirds of the Senators present. Furthermore, the Bush, Biden, and Trump administrations have also opposed

[7] 22 U.S.C. § 7422(e), https://uscode.house.gov/view.xhtml?edition=2023&num=0&req=granuleid:USC-2023-title22-section7422.

subjecting American personnel to the ICC's jurisdiction.[8] Congress therefore enacted an unusually open-ended statutory grant of authority without requiring lawmakers to reconsider it as circumstances change.

Section 2008's lack of built-in congressional oversight matters especially because war-powers disputes can fail on threshold justiciability grounds before courts ever reach the merits. In *Campbell v. Clinton*, a federal appeals court dismissed a lawsuit by members of Congress challenging President Clinton's conduct of the Kosovo air campaign because the legislators lacked standing, reasoning that Congress still had the legislative means to restrain the President and therefore individual members of Congress had not suffered an Article III injury.[9] In *Doe v. Bush*, the First Circuit likewise declined to reach the merits of a prewar constitutional challenge because the dispute had failed the ripeness test; the 2003 invasion of Iraq had not yet begun, and the political branches had not yet reached a sufficiently concrete constitutional confrontation.[10] These cases make statutory safeguards particularly important: judicial review may not reach the underlying dispute over executive authority. Section 2008 itself, however, contains no reporting requirement tied to its use, periodic reauthorization requirement, or

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[8] U.S. Const. art. II, § 2, cl. 2; United States of America: Communication, U.N. Doc. C.N.434.2002.TREATIES-21 (May 6, 2002), https://treaties.un.org/doc/Publication/CN/2002/CN.434.2002-Eng.pdf; Exec. Order No. 14022, 86 Fed. Reg. 17895 (Apr. 7, 2021), https://www.govinfo.gov/content/pkg/FR-2021-04-07/pdf/FR-2021-04-07.pdf; Exec. Order No. 14203, 90 Fed. Reg. 9369 (Feb. 12, 2025), https://www.govinfo.gov/content/pkg/FR-2025-02-12/pdf/FR-2025-02-12.pdf.

[9] *Campbell v. Clinton*, 203 F.3d 19, 20, 23–24 (D.C. Cir. 2000), https://law.justia.com/cases/federal/appellate-courts/F3/203/19/474835/.

[10] *Doe v. Bush*, 323 F.3d 133, 138–40 (1st Cir. 2003), https://law.justia.com/cases/federal/appellate-courts/F3/323/133/575908/.

ordinary expiration date. If courts do not reach the merits, congressional reconsideration therefore depends on Congress affirmatively returning to the issue.

None of this depends on the policy merits of protecting American personnel from the jurisdiction of the ICC. The problem is how Congress structured the President's authority. Section 2008 contemplates an extraordinary use of presidential power while omitting the express War Powers Resolution language Congress used in the 2001 AUMF, temporal limitations or periodic-review mechanisms of the kind Congress has used elsewhere. Those omissions leave an unusually open-ended delegation in an area where judicial review may not reach the merits. As such, Congress should amend Section 2008 to clarify its relationship with the War Powers Resolution and impose meaningful congressional oversight, or repeal the section entirely.